

Line 6

Case Name: *Yi Wei v. Tina Tipping Hsu*

Case No.: 24CV451814

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Tina Tipping Hsu (“Defendant”) moves under Code of Civil Procedure Section 473(d) for the Court to correct a clerical error in its Order filed January 22, 2026. Notice of Motion (the “Motion”) at 2:4-5 (filed: March 2, 2026). The Motion is made on the ground that the January 22, 2026 Order reflected the incorrect amount of attorneys’ fees awarded during oral argument of the October 1, 2025 hearing, which transcript is attached to the Declaration of Marisella T. Prada (“Prada Declaration”) in Support of the Motion. *Id.* at 1:6-9.

The Motion came on for hearing on September 4, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background Facts & Procedural Posture

The general background facts and procedural history of this case as set forth in great detail in the Court’s January 22, 2026 Order are incorporated by reference, confirmed in full now, and will not be repeated here. *See* Order 2:25-5:25 (“Factual and Procedural Background”) (filed: Jan. 22, 2026).

That January 22, 2026 Order, which Defendant Hsu now moves the Court to correct a clerical mistake in regarding the amounts of attorneys’ fees awarded, memorialized rulings on five separate Motions *decided at the October 1, 2025 hearing* in Department 16 by:

1. Denying Plaintiff’s Motion for Reconsideration of Order Granting Defendant’s Special Motion to Strike (C.C.P. § 435.16);
2. Granting Defendant’s Motion for Statutory Attorneys’ Fees;
3. Sustaining Defendant’s Demurrer to Plaintiff’s First Amended Complaint;
4. Granting Defendant’s Motion to Expunge *Lis Pendens*; and
5. Advancing for hearing Defendant’s Motion for Sanctions *and* Denying that Motion.

Order at 1:13-21, 6:1-10:28 (filed: Jan. 22, 2026).

Specifically, the plain text of the official transcript of the October 1, 2025 hearing shows beyond any doubt that the Court at that hearing, after hearing argument from all counsel, *decided* that:

1. the amount of attorneys' fees that the Court awarded to Defendant as prevailing party on the Anti-SLAPP motion is **\$26,614.75**, and
2. the separate amount of attorneys' fees that the Court awarded to Defendant as prevailing party on the motion to expunge the *lis pendens* is **\$9,883.75**.

Prada Declaration, Ex. 1, Certified Transcript of Oct. 1, 2025 Hearing at 14:7-17 (on the award of attorneys' fees on the Anti-SLAPP motion, THE COURT: "The court is not going to include in the award the [\$495] first filing fee. So the [**\$26,809.75**] should be reduced by the amount of **\$495**, I believe, and that would leave a balance of [**\$26,314.75**]. Then the amount of [**\$ 9,883.75**] are additional fees for the expungement of the *lis pendens*, and is required by statute those fees **are also granted.**") (emphasis added).

These rulings on amounts of attorneys' fees awarded on the record by this Court in favor of Defendant and against Plaintiff on these separate and distinct motions—\$26,314.75 for the Anti-SLAPP Motion *and* \$9,883.75 for the *lis pendens* motion—are clear, unmistakable, and final.

Yet when memorializing those attorney fee awards in the Court's January 22, 2026 Order, the Court made a clerical cut-and-paste mistake by switching and awarding Defendant **\$9,883.75 in fees for Anti-SLAPP Motion** when it actually awarded Defendant **\$9,883.75 in fees for the *Lis Pendens* Motion** at the October 1, 2025 hearing. Same amount, wrong motion. *Compare* Order at 8:7-12 (filed Jan. 22, 2026) with Prada Declaration, Ex. 1, Certified Transcript of Oct. 1, 2025 Hearing at 14:7-17. That is a clear and obvious clerical error that Court will correct now in this Order.

Legal Standard on Section 473(d) Motion

Code of Civil Procedure section 473(d) authorizes a court to correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed. (§ 473.) The critical distinction is between an error in rendering the judgment and an error in recording the judgment rendered. (*Machado v. Myers* (2019) 39 Cal.App.5th 779; *Conservatorship of Tobias* (1989) 208 Cal.App.3d 1031, 1035.)

An error is clerical when the signed order does not express the court's actual intention, even if the mistake was made by the court itself. (*Conservatorship of Tobias* (1989) 208 Cal.App.3d 1031, 1035.) The moving party bears the burden of demonstrating that the written order fails to reflect the court's actual oral pronouncement. (*Machado v. Myers* (2019) 39 Cal.App.5th 779.)

Analysis of the Motion

I. The Court Made a Clerical Error in the January 22, 2026 Order when it inadvertently switched and awarded Defendant \$9,883.75 in fees for Anti-SLAPP Motion when it actually awarded \$9,883.75 in fees for the *Lis Pendens* Motion at the October 1, 2025 hearing.

The Court finds that the discrepancy between the amounts that the Court decided and awarded Defendant at the October 1, 2025 hearing in attorneys' fees for the separate Anti-SLAPP and *lis pendens* motions is a clerical error correctable now under Code of Civil Procedure section 473(d). Multiple factors support this conclusion.

First, the certified October 1, 2025 hearing transcript unambiguously establishes that the Court, after identifying and correcting confusion between two fee memoranda, expressly directed an Anti-SLAPP fee award of \$26,314.75. The transcript shows the Court performing arithmetic on the record, stating the resulting figure, and confirming that the fee award would be made. This is not fragmentary or tentative language; it is a completed ruling.

Second, the January 22, 2026 written order's use of the \$9,883.75 figure for the Anti-SLAPP motion is powerful evidence of recording error rather than deliberate reconsideration. This amount is not a newly calculated figure or a partial reduction reflecting independent analysis; it is the *exact amount* of fees the Court had just identified on October 1 as being awarded on a different motion entirely—the *lis pendens* motion.. The numerical identity strongly suggests inadvertent transposition rather than deliberate new adjudication.

Third, if the Court had independently redetermined the Anti-SLAPP fee amount after October 1, one would expect either an explanation for the change or, at minimum, a different dollar figure not *identical* to the amount the Court had expressly identified as the fee award for the *lis pendens* motion.

Fourth, the treatment of the *lis pendens* fees in the written order corroborates the conclusion of clerical error. The October 1 transcript shows the Court expressly granting those fees: \$ 9,883.75, which the Court awarded after explaining on the record on October 1, 2025 that they are "required by statute." Prada Declaration, Ex. 1, Certified Transcript of Oct. 1, 2025 Hearing at 14:16, *supra*.

Plaintiff argues that the written order contains additional findings and analysis not present in the oral ruling, including an express finding regarding the reasonableness of the hourly rate and exclusions of certain time entries. While these additions demonstrate that the drafter engaged with the fee materials when preparing the written order, they do not establish that the Court deliberately chose to award \$9,883.75 for the Anti-SLAPP motion. The dispositive question is whether the challenged difference in amount was a deliberate new adjudication or an error in recording the adjudication already made. (*Machado v. Myers* (2019) 39 Cal.App.5th 779.) The official October 1, 2025 hearing transcript's sequence—in which the Court identified the \$9,883.75 figure as belonging to

the lis pendens request and then calculated a different amount for the Anti-SLAPP motion—does not give rise any reasonable inference that the Court months later in the January 22, 2026 Order just happened to reason its way back to the same dollar figure of \$9,883.75. That’s not a coincidence; that’s a clear clerical mistake.

Accordingly, after carefully reviewing the record, and in the broad exercise of its discretion, the Court finds that the discrepancy between the \$26,314.75 Anti-SLAPP fee award stated in the October 1, 2025 oral ruling and the \$9,883.75 awarded in the January 22, 2026 written order constitutes a clerical error correctable under Code of Civil Procedure section 473(d). The written order failed to accurately record the decision that the Court actually directed on these fee awards at the October 1, 2025 hearing.

II. The January 22, 2026 Order Is Corrected Now to Reflect that the Court Awarded Defendant \$26,314.75 in fees for the Anti-SLAPP Motion at the October 1, 2025 hearing.

Having determined that the written order contains a clerical error and must be corrected to conform to the oral ruling, the Court addresses whether Defendant is entitled to correction of the written order to reflect the \$26,314.75 Anti-SLAPP attorney fees amount directed at the October 1, 2025 hearing, and whether that amount is substantively proper under Code of Civil Procedure section 425.16(c). The answer is Yes and Yes.

Under Code of Civil Procedure section 425.16(c)(1), a prevailing anti-SLAPP defendant is entitled to recover attorney fees and costs. (§ 425.16.) The hearing record establishes that the Court confirmed the Anti-SLAPP request at \$26,809.75, identified and excluded only the \$495 first-appearance fee because it was not related to the Anti-SLAPP motion, and directed that Plaintiff pay Defendant \$26,314.75 as Defendant’s fees for the Anti-SLAPP motion. Prada Declaration, Ex. 1, Certified Transcript of Oct. 1, 2025 Hearing at 14:7-17.

That calculation reflects a valid exercise of discretion and the Court’s final decision on this point. The Court accepted Defendant’s fee request and excluded only the single item it determined was not causally related to the Anti-SLAPP motion. The record does not reflect that Plaintiff raised any substantive objection at the October 1 hearing to the \$26,314.75 figure on grounds of hourly rate, necessity, or block-billing.

Accordingly, the Court finds that the amount of \$26,314.75 is substantively proper under Code of Civil Procedure section 425.16(c) for the award of fees to Defendant on the ANTI-SLAPP Motion. So under Section 473(d), Defendant is entitled to correction of the written order to reflect this amount.

III. The January 22, 2026 Order Is Corrected Now to Reflect that the Court Awarded Defendant \$ 9,883.75 in fees for the *Lis Pendens* Motion at the October 1, 2025 hearing.

As shown above, the certified transcript of the October 1, 2025 hearing shows the that the Court express decided and awarded Defendant fees in the amount of \$ 9,883.75

for the *lis pendens* motion. Prada Declaration, Ex. 1, Certified Transcript of Oct. 1, 2025 Hearing at 14:14-17.

The January 22, 2026 written order, by mistake, left the *lis pendens* fees “without prejudice to any other requests” (Order at p. 8, n. 2) rather than stating the fact that the Court already granted them in the exact amount of \$9,883.75 to Defendant at October 1, 2025 hearing. Prada Declaration, Ex. 1, Certified Transcript of Oct. 1, 2025 Hearing at 14:14-17. the granting them. Order at 8, n. 2 For the same reasons discussed above regarding the Anti-SLAPP fees, this departure from the oral ruling constitutes a clerical error. Accordingly, the Court rules that the January 22, 2026 the written order should be corrected to reflect that the *lis pendens* expungement fees in the amount of \$9,883.75 were granted to Defendant at the October 1, 2025 hearing.

Order & Conclusion

For the reasons explained above, and in the broad exercise of its discretion, the Court **GRANTS** Defendant’s Motion in all respects. Specifically, the January 22, 2026 written Order is now corrected *nunc pro tunc*, effective as of January 22, 2026, as follows:

1. Defendant’s Motion for Statutory Attorneys’ Fees and Costs on the Anti-SLAPP Motion is **GRANTED** to Defendant in the amount of **\$26,314.75** (which equals the \$26,809.75 initially requested by Defendant, reduced by the \$495.00 first-appearance fee excluded by the Court, resulting in a net award of \$26,314.75); *and*
2. Defendant’s request for statutory attorneys’ fees and costs on the Motion to Expunge the *Lis Pendens* is **GRANTED** to Defendant in the amount of **\$9,883.75**.

All other provisions of the January 22, 2026 written Order remain in full force and effect.

SO ORDERED.

Date: September 4, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 7

Case Name: *Michael Minh Vanderzyl v. Bill Wong, et al.*

Case No.: 25CV466037

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Michael Minh Vanderzyl (“Plaintiff”) moves under Code of Civil Procedure Section 473(d) to set aside the Order of Dismissal dated and entered on April 23, 2026 which was made without prejudice and subject to Code of Civil Procedure Section 664.6 (the “Section 664.6 Dismissal”). Notice of Motion (the “Motion”) at 1:22-25 (filed: June 18, 2026). This Section 473(d) Motion is made on the ground that the Section 664.6 Dismissal is void on its face because the case did not settle and *all* parties never stipulated in writing or orally that the case settled. *Id.* at 1:25-27

The Motion came on for hearing on September 4, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

On April 15, 2026, the Court held a further Case Management Conference (“CMC”) in this case. There, attorney Veronica Murayama specially appeared for Plaintiff on behalf of Plaintiff’s counsel of record Cynthia Allred; attorney Alan Sherwood appeared for Defendants Bill Bong and Jennifer Wong (“Defendants”).

At the outset of that CMC, upon attorney Sherwood advising the Court orally that a settlement had been reached, the Court exercised its discretion to dismiss this case without prejudice Code of Civil Procedure Section 664.6. However, upon counsel for all parties next advising the Court at that CMC that the settlement had not yet been reduced to a written agreement, and so perhaps was not yet final after all, the Court assured the parties that if the settlement was not finalized and reduced to writing soon then the Court would set aside the Section 664.6 Dismissal and reinstate this case promptly to active status.

Unfortunately, as Plaintiff advised the Court shortly after the April 15, 2026 CMC when he promptly filed this unopposed Motion, the parties have not been able to settle this case after all. Plaintiff is still negotiating with State Farm, an insurer of Defendants. So a settlement agreement has in fact not yet been finalized let alone reduced to writing.

Given this unfortunate development and the Court’s promise to set aside the Section 664.6 dismissal and promptly reinstate this case to active status if the settlement was not finalized and reduced to writing soon, the Court next on July 16, 2026 granted